

FORM 70R
THE KING'S BENCH (FAMILY DIVISION)
_____ Centre

BETWEEN:

(full name)

petitioner

– and –

(full name)

respondent

MOTION BRIEF

A MOTION BY _____ is set for hearing
(name of party)
on _____, _____ at _____, for a period of _____.
(day) (date) (time) (length)

1. The contested issues to be determined are:

- | | |
|--|---|
| ☐ Non-cohabitation | ☐ Exclusive occupation of family home |
| ☐ Parenting arrangements | ☐ Partition or sale |
| ☐ parenting time | ☐ Postponement of sale |
| ☐ decision-making responsibility | ☐ Protective relief, including |
| ☐ contact | ☐ prohibition against following |
| ☐ other (specify): _____ | ☐ prohibition against contact/communication |
| ☐ Declaration of parentage | ☐ prohibition against attendance |
| ☐ Child support | ☐ driving suspension/disqualification (section 15(1)
of <i>The Domestic Violence and Stalking Act</i>) |
| ☐ table amount | ☐ set aside protection order |
| ☐ special or extraordinary expenses | ☐ other (specify): _____ |
| ☐ other amount | ☐ Remission of Arrears |
| ☐ Spousal support | ☐ Financial disclosure |
| ☐ Common-law partner support | ☐ Costs |
| ☐ Division of family property | ☐ Other (specify): _____ |
| ☐ equal | |
| ☐ unequal | |

2. The following material is relevant to the issues and should be read in preparation for the hearing:
(Where transcripts of examinations are to be used, identify particular questions and answers to be relied upon by page and number.)

3. Concise statement of facts. (optional)

4. The position of the _____ on the contested issue(s) is:
(party)
(Identify each contested issue in a separate paragraph and state your position on that issue.)

5. ☐ A specific point of law will be argued on this motion and I have attached the authorities on which I intend to rely. I have highlighted those portions of the authorities which are relevant.

OR

- ☐ No specific point of law is intended to be argued and accordingly no authorities are attached.

6. ☐ (Where child support, income determination, s. 7 re child support guideline contributions, undue hardship or quantum of spousal support are in issue.) I have attached to this brief all required calculations including tax calculations where applicable.

7. *(Where remission of arrears is in issue:)*

I have attached all necessary calculations showing the payor's income situation during any period of time for which remission of arrears is sought; and

A copy of the motion to remit arrears was served on the Director of Assistance designated under *The Manitoba Assistance Act* or their authorized representative and the Director under *The Disability Support Act* or their authorized representative on _____.
(date)

8. The undersigned does not expect to file any additional material with regard to this motion.

Date_____
Signature of lawyer or party_____
(Name of lawyer or party)_____
(Firm name)_____
(Address)_____
(Phone)_____
(Fax)_____
(E-mail address)TO: _____
(other party's lawyer)OR TO: _____
(other party)